

9:00

LINE 1

26-CIV-04422 PEDRO NAJERA VS. SYRIA DOMINGUEZ

PEDRO NAJERA
SYRIA DOMINGUEZALEXSIS C. BEACH

PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION
OF PROCEEDS OF JUDGMENT FOR MINOR OR PERSON WITH A DISABILITY BY PEDRO
NAJERA

TENTATIVE RULING:

The Petition for Approval of Compromise of Claim for Minor ("Petition") is **DENIED without prejudice** to either: (1) appear on July 6, 2026, and address the issues noted herein; or (2) refile the Petition to address the issues herein.

The Court is denying the Petition for the following reasons:

1. The Petition is accompanied by an Application for Appointment of Guardian Ad Litem, however there is no Order Appointing Guardian Ad Litem (Judicial Council Form CIV-011/FL-936) filed with the Application.
 2. Paragraph 11 of the Petition is not completely filled out and there is no Attachment 11b(6).
 3. Paragraph 14 of the Petition is not completely filled out.
 4. Paragraph 16.b. of the Petition has an error: \$750.00 should be \$7,500.00.
 5. Paragraph 17.a.(2) appears to have an error, because the Petitioner and attorney "do" have an agreement, which is contained in Attachment 17a.
 6. Paragraph 17.c. is indecipherable and a detailed explanation needs to be included in an Attachment 17c.
 7. The Petition does not appear to satisfy Probate Code §§ 3401(c)(1) and 3611, which expressly limits direct payment to a parent to cases where the remaining balance **does not exceed** \$5,000. For amounts above that threshold, the Court must order one or more of the other protective arrangements enumerated in § 3611, such as a blocked account, a court-created trust, a special needs trust, a UTMA custodianship, or a guardianship of the estate. Here, Petitioner seeks a court order unconditionally disbursing \$20,997.33 to a parent of the minor without any indication or accompanying order that the funds will be held in trust for the minor. (Petition at
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¶18.a.(1).) These circumstances seem to require an Order to Deposit Funds in a Blocked Account (Judicial Council Form MC-355), which is not included with the Petition. The Proposed Order filed with the Petition references the appropriate blocked account and the MC-355, but since no such form has been filed, this discrepancy exists.

If the tentative ruling is uncontested and there is no appearance on July 6, 2026, to address the issues herein, the Court will order the Petition denied without prejudice to refile.

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